



CHAPTER 8.

An Act to amend the provisions of the Mental Deficiency and Lunacy (Scotland) Act, 1913, with regard to the duration of the detention of mental defectives in institutions or under guardianship. [14th March 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Section twelve of the Mental Deficiency and Lunacy (Scotland) Act, 1913, (hereinafter referred to as the principal Act), shall, as regards the manner of continuing, after the commencement of this Act, any order that a defective be sent to an institution or placed under guardianship, have effect as if for subsections (2) and (3) the following subsections were substituted :—

Amendment
of 3 & 4
Geo. 5.
c. 38, s. 12.

“(2) Save as hereinafter provided, an order shall remain in force for a year after the date when under the preceding provisions of this section it would have expired, and thereafter for successive periods of three years if within one month prior to that date, and within one month prior to the end of each period of one and three years respectively the Board, after considering such special report and certificate as is hereinafter mentioned, and the means of care and supervision which would be available if the defective

were discharged, determine that the continuance of the order is required in his interests and make an order to that effect :

Provided that, where a defective was at the date of the order under twenty-one years of age, the question of his discharge shall be considered by the Board within three months after he attains that age.

(3) Where any order that a defective be sent to an institution or placed under guardianship is in force by virtue of an order made under the immediately preceding subsection, it shall be lawful for the defective, or his parent or guardian, or the person who presented the petition on which the original order was made, or the local authority concerned, to appeal to the sheriff against the continuance of the order, and on any such appeal the sheriff, after such inquiry as he shall think necessary may direct that the order shall cease to have effect and that the defective shall be discharged, or may dismiss the appeal as he shall think fit :

Provided that no appeal under this section against the continuance of any order shall be competent within the period of two years from the date when any previous appeal against the continuance of that order was finally disposed of."

Amendment
of 3 & 4
Geo. 5.
c. 38, s. 13.

2. Section thirteen of the principal Act shall have effect as if for subsection (2) the following subsection were substituted :—

"(2) Subject to the foregoing provisions of this section, a defective who has under this Act been placed by his parent or guardian or by a parish council with the consent of his parent or guardian in an institution or under guardianship may be detained in the institution or under guardianship, subject to the following conditions:—

(i) the question of the further detention of such defective shall be considered by the Board in the like manner and at the like intervals as if he had been placed in the institution or under guardianship in pursuance of an order made under this Act on the date when he was so placed ;

- (ii) if, on any such consideration, it appears to the Board that further detention in the institution or under guardianship is no longer required in the interests of the defective, the Board shall order him to be discharged;
- (iii) at any time after the expiry of a year from the time when the defective was placed in an institution or under guardianship, it shall be lawful for him or his parent or guardian or the local authority concerned to appeal to the sheriff against his further detention, and on any such appeal the sheriff, after such inquiry as he shall think necessary, may direct that the defective shall be discharged or may dismiss the appeal, as he shall think fit:

Provided that no such appeal shall be competent within the period of two years from the date when any previous appeal against the further detention of the defective was finally disposed of."

3. Where the Board have—

- (a) made any order in pursuance of subsection (2) of section twelve of the principal Act as amended by this Act, or
- (b) on consideration, in pursuance of subsection (2) of section thirteen of the principal Act as so amended, of the question of the further detention of a defective, decided that further detention is required in his interests;

Intimation
of orders or
decisions
regarding
continued
detention of
defectives.

they shall forthwith inform the defective to whom the order or decision relates and the local authority concerned of the order or decision and of the right of appeal conferred by the aforesaid sections, and shall take such steps as are reasonably practicable to bring the order or decision and the right of appeal to the notice of the parent or guardian of the defective and, in the case of an order, of the person who presented the petition on which the original order was made.

Orders
deemed to
have been
validly
continued
notwith-
standing
failure to
intimate to
parents, &c.

4. Where—

- (a) with a view to the continuance under section twelve of the principal Act of an order that a defective be sent to an institution or placed under guardianship; or
- (b) with a view to the continued detention under the said section, as applied by section thirteen of the said Act, of a defective placed by his parent or guardian or by a council with the consent of his parent or guardian in an institution or under guardianship;

the Board have, prior to the commencement of this Act, sent an intimation to the defective and to the local authority concerned regarding the continuance of the order or detention, the order shall be deemed to have been duly continued in accordance with the provisions of the said section twelve or the continued detention shall be deemed to have been duly authorised in accordance with the said provisions as applied as aforesaid, as the case may be, notwithstanding that such intimation may not have been made to the defective's parent or guardian or to the person who presented the petition on which the order was made :

Provided that where, by virtue of the foregoing provisions of this section, any such order is in force or any defective is detained in an institution or under guardianship at the commencement of this Act—

- (i) the defective or his parent or guardian or the person who presented the petition on which the order was made, or the local authority concerned may, at any time within six months after the commencement of this Act, appeal to the sheriff against the continuance of the order, or against the further detention of the defective in the institution or under guardianship, as the case may be, and on any such appeal, the sheriff, after such inquiry as he shall think necessary, may direct that the order shall cease to have effect or that the defective shall be discharged or may dismiss the appeal as he shall think fit; and
- (ii) it shall be the duty of the Board as soon as may be after the commencement of this Act to inform

the defective and the local authority concerned of the right of appeal conferred by this section and to take such steps as may be reasonably practicable to bring that right to the notice of the parent or guardian of the defective, and, in the case of an order, of the person who presented the petition on which the order was made.

5. This Act may be cited as the Mental Deficiency (Scotland) Act, 1940, and the Mental Deficiency and Lunacy (Scotland) Act, 1913, and this Act shall be construed as one and may be cited together as the Mental Deficiency (Scotland) Acts, 1913 and 1940. Citation and construction.

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament